



CHAPTER cxli.

An Act to authorise the Whitechapel and Bow Railway Company to raise additional capital and the London Tilbury and Southend and Metropolitan District Railway Companies to subscribe thereto and to raise additional capital for that purpose and for other purposes.

A.D. 1905.

[4th August 1905.]

WHEREAS by the Whitechapel and Bow Railway Act 1897 the Whitechapel and Bow Railway Company (in this Act referred to as "the Whitechapel Company") were incorporated and were authorised to construct a railway therein described to connect the railways of the Metropolitan District Railway Company (in this Act referred to as "the District Company") with the railways of the London Tilbury and Southend Railway Company (in this Act referred to as "the Tilbury Company"):

60 & 61 Vict.
c. cclvii.

And whereas under the said Act the Whitechapel Company were authorised to raise six hundred and sixty thousand pounds in sixty-six thousand shares of ten pounds each and to borrow in respect thereof not exceeding two hundred and twenty thousand pounds:

And whereas by the said Act the Whitechapel Company on the one hand and the District Company and the Tilbury Company (in this Act together referred to as "the two companies") or either of those companies on the other hand were empowered to enter into agreements with respect to the maintenance management use and working of the railway and other matters incidental thereto:

And whereas by the Whitechapel and Bow Railway Act 1898 and the London Tilbury and Southend Railway Act 1898 the two companies were respectively empowered to subscribe

61 & 62 Vict.
c. cclxi.
61 & 62 Vict.
c. clxxvi.

A.D. 1905. — such moneys as they might think fit towards the undertaking of the Whitechapel Company not exceeding in the whole one half of the authorised capital of the Whitechapel Company and provision was made with respect to the raising of such money and the two companies were respectively authorised to subscribe for and hold debentures or debenture stock of the Whitechapel Company not exceeding in the whole one half of the authorised debentures or debenture stock and to guarantee the payment of interest not exceeding the rate of four per centum per annum upon the debentures or debenture stock of the Whitechapel Company :

63 & 64 Vict.
c. cxxvii.
2 EDW. 7.
c. clxxxii.

And whereas by the Whitechapel and Bow Railway Act 1900 and the Whitechapel and Bow Railway Act 1902 (in this Act referred to as "the Act of 1902") the Whitechapel Company were authorised to raise additional capital to the extent therein respectively mentioned and to borrow moneys in respect of such additional capital and further powers of subscription were conferred upon the two companies :

And whereas it is expedient that the Whitechapel Company should be empowered to raise additional capital for the purpose of completing and equipping their said railway and otherwise for the purposes of the undertaking of the Whitechapel Company and that such further powers should be conferred on the two companies and such further provisions made with respect to such additional capital as are in this Act contained :

And whereas it is expedient that powers of raising additional capital for the purposes of subscription to the additional capital of the Whitechapel Company by this Act authorised to be raised should be conferred upon the two companies as by this Act provided :

And whereas it is expedient that the Whitechapel Company and the two companies and the Underground Electric Railways Company of London Limited (in this Act referred to as "the Underground Company") or any of those companies should be empowered to enter into and carry into effect agreements with respect to the matters hereinafter referred to :

And whereas it is expedient that the powers with respect to the disposal of lands and the erection and disposal of buildings upon or over the lands railways and stations of the Whitechapel Company hereinafter contained should be conferred upon that company :

And whereas it is expedient that the other provisions of this Act should be made: A.D. 1905.

And whereas the purposes aforesaid cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted and be it enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows (that is to say):—

1. This Act may be cited as the Whitechapel and Bow Railway Act 1905. Short title.

2. The Whitechapel Company may from time to time subject to the provisions of Part II. of the Companies Clauses Act 1863 raise for purposes of and connected with their undertaking any additional sum or sums not exceeding in the whole one hundred and fifty thousand pounds by the creation and issue of new ordinary shares or stock or with the consent of the two companies of preferred shares or stock or wholly or partly by any one or more of those methods respectively which shares or stock shall form part of the general capital of the Whitechapel Company. Whitechapel Company may raise additional capital.

3. The Whitechapel Company may in respect of the additional capital of one hundred and fifty thousand pounds which they are by this Act authorised to raise from time to time borrow on mortgage of their undertaking any sum not exceeding in the whole fifty thousand pounds and of that sum they may from time to time borrow any sum not exceeding in the whole ten thousand pounds in respect of each sum of thirty thousand pounds of the said additional capital but no part of any such sum of ten thousand pounds shall be borrowed until shares for so much of the thirty thousand pounds of capital in respect of which it is to be borrowed as is to be raised by means of shares are issued and accepted and one half of such capital is paid up and the Whitechapel Company have proved to the justice who is to certify under the fortieth section of the Companies Clauses Consolidation Act 1845 before he so certifies that shares for the whole of such portion of capital have been issued and accepted and that one half of such portion of capital has been paid up and that not less than one-fifth part of the amount of each separate share in such portion of capital has been paid on account thereof before or at the time of the issue or acceptance thereof and until stock for one half of so much of the said

Power to borrow.

A.D. 1905. additional capital as is to be raised by means of stock is fully paid up and the Whitechapel Company have proved to such justice as aforesaid before he so certifies that such shares or stock as the case may be were issued and accepted and to the extent aforesaid paid up bonâ fide and are held by the persons or corporations to whom the same were issued or their executors administrators successors or assigns and also so far as the said additional capital is raised by shares that such persons or corporations or their executors administrators successors or assigns are legally liable for the payment of any sum remaining uncalled up or unpaid in respect of any share held by them respectively and upon production to such justice of the books of the Whitechapel Company and of such other evidence as he shall think sufficient he shall grant a certificate that the proof aforesaid has been given which certificate shall be sufficient evidence thereof.

Appointment of receiver. **4.** Section 20 of the Act of 1902 with respect to the appointment of a receiver by mortgagees of the Whitechapel Company is hereby repealed but without prejudice to any appointment made or to the continuance of any proceedings which may have been commenced prior to the passing of this Act under that section.

The mortgagees of the undertaking may enforce payment of arrears of interest or principal or principal and interest due on their mortgages by the appointment of a receiver. In order to authorise the appointment of a receiver in respect of arrears of principal the amount owing to the mortgagees by whom the application for a receiver is made shall not be less than ten thousand pounds in the whole.

Debenture stock. **5.** The Whitechapel Company may create and issue debenture stock subject to the provisions of section 19 of the Whitechapel and Bow Railway Act 1900.

As to subscriptions and guarantees by two companies. **6.**—(1) When and so soon as the Whitechapel Company shall have created the additional capital which they are by this Act authorised to raise each of the two companies shall subscribe for and may hold and the Whitechapel Company shall in consideration of such subscription issue to them respectively ordinary shares or stock in such additional capital to the amount of forty-five thousand pounds.

(2) In respect of the shares or stock to be issued by the Whitechapel Company under the powers of this Act for the purpose of raising the remaining sum of sixty thousand pounds by this Act authorised to be raised each of the two companies

may with the authority of three fourths of the votes of their respective shareholders present in person or by proxy at general meetings specially convened for the purpose subscribe for and hold any of such shares or stock to an additional amount not exceeding thirty thousand pounds and the two companies may in lieu of or in addition to subscriptions under the powers of this subsection with the like consent jointly or severally guarantee dividends or interest at such rate not exceeding four per centum per annum as the two companies may determine upon such shares or stock or any part thereof.

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(3) Each of the two companies may with the like authority subscribe for and hold any debentures or debenture stock of the Whitechapel Company issued under the powers of this Act not exceeding in the whole in the case of each of the two companies one half of such debentures or debenture stock and the two companies may jointly or severally guarantee the payment of interest not exceeding the rate of four per centum per annum upon any or any part of such debentures or debenture stock and the debentures or certificates of debenture stock issued by the Whitechapel Company to which any such guarantee may apply shall be marked or endorsed with a statement that they are so guaranteed.

(4) Each of the two companies shall in respect of the sums to be subscribed and the corresponding shares or stock of the Whitechapel Company to be held by them respectively have all the powers rights and privileges and be subject to all the obligations and liabilities of proprietors of shares or stock of the Whitechapel Company.

7. Each of the two companies may for all or any of the purposes of this Act apply their respective funds and revenues and any capital which they are respectively authorised to raise and which may not be required for the purposes for which it is authorised to be raised.

Two companies may apply funds.

8. Each of the two companies may raise the amount of their respective subscriptions to the Whitechapel Company subject to the provisions of Part II. of the Companies Clauses Act 1863 by the creation and issue at their option of new ordinary shares or stock or new preference shares or stock or partly by any one or more of those methods respectively which shares or stock shall form part of the general capital of the Company issuing the same ;

Creation of new capital by two companies.

A.D. 1905.

Provided always that notwithstanding anything contained in the said Part II. of the Companies Clauses Act 1863 it shall not be necessary for either of the two companies to obtain the sanction of their respective shareholders to the creation and issue of new ordinary shares or stock or new preference shares or stock for the purpose of raising the sum of forty-five thousand pounds to be subscribed by them respectively as provided by subsection (1) of the section of this Act of which the marginal note is "As to subscriptions and guarantees by two companies":

Provided also that nothing in this Act or in the said Part II. of the Companies Clauses Act 1863 shall prevent the District Company from exercising all or any of the powers conferred upon them by section 4 (As to raising additional capital by preference stock) of the Metropolitan District Railway Act 1905 or in any way limit or affect the operation of that section.

Incorporating certain provisions of Act of 1902.

9. The sections of the Act of 1902 of which the numbers and marginal notes are hereinafter set forth are hereby incorporated with this Act and shall extend and apply to the additional capital by this Act authorised to be raised and the additional sum by this Act authorised to be borrowed and to the Whitechapel Company and the two companies in respect of such additional capital and such additional sum and the shares or stock or debentures or debenture stock of the Whitechapel Company created under the powers of this Act as fully and effectually for all intents and purposes as if the said sections were in terms re-enacted in this Act and the expression "the Company" in the said sections shall be construed as meaning the Whitechapel Company.

The sections hereinbefore referred to are the following (namely):—

- Section 16 (Shares not to vest until one-fifth part paid up);
- Section 17 (Receipt in case of persons not sui juris);
- Section 18 (As to votes of proprietors of new shares or stock);
- Section 22 (Existing mortgages to have priority);
- Section 23 (Application of moneys);
- Section 24 (Interest not to be paid on calls paid up); and
- Section 26 (Transfer of shares or stock by two companies).

10. The Whitechapel Company the District Company the Tilbury Company and the Underground Company or any two or more of those companies may enter into and carry into effect agreements for or with respect to the supply to the Whitechapel Company and the Tilbury Company or either of them by the District Company and the Underground Company or either of them of electric power or current for the working of traffic on any part of the railway of the Whitechapel Company and any railway of the Tilbury Company forming a continuation or extension of that railway and for or with respect to the grant by the District Company and the Whitechapel Company or either of them of the easement or right of laying down maintaining and using cables wires and appliances mains conduits and other works and apparatus for the purpose of any such supply on under or along the railways of the District Company and of the Whitechapel Company or either of such railways or elsewhere and for or with respect to the use by the Whitechapel Company and the Tilbury Company or either of them of transformer sub-stations of the District Company and the Underground Company or either of them and the plant and other apparatus in and the cables and other appliances connected with any such sub-stations:

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Power to
Whitechapel
Company
District Com-
pany Tilbury
Company
and Under-
ground Com-
pany to enter
into agree-
ments.

Provided that (1) the provisions for the protection of the Postmaster-General which are contained in the Acts relating to the Whitechapel Company and to the Tilbury Company respectively shall apply to any supply by the District Company and the Underground Company or either of them of electric power or current for the working of traffic on any part of the railways of the Whitechapel Company and the Tilbury Company and (2) nothing in this section or in any agreement or grant of easements or rights and nothing done under any such agreement or grant shall prejudice or affect the rights of the Postmaster-General in relation to the railways of the District Company under the Telegraph Act 1868 or under an award of Sir Henry Singer Keating dated the second day of January one thousand eight hundred and seventy-nine or operate in such a manner as to interfere with or involve additional expense in the exercise of any such rights.

11.—(1) Subject to the provisions of this Act the Whitechapel Company may build hold sell let or otherwise deal with or dispose of fit up and decorate shops chambers flats offices or other buildings on or over any of their existing stations or on or over any station they may hereafter construct or over their

Power to
Whitechapel
Company to
build sell let
deal use or
dispose of
shops build-
ings &c.

A.D. 1905. railway or upon or over any lands for the time being belonging to or vested in them and may hold sell and dispose of any houses and buildings or any part or parts thereof built by them over any of their stations or on the site thereof and may also sell or dispose of the right to build on or over any of their stations or the sites thereof or they may demise such right.

(2) Every such sale demise letting or disposition shall be in such manner for such consideration and on such terms and conditions as the Whitechapel Company think fit and in the case of a sale either in consideration of a gross sum or of an annual rent or of any other payment in any other form and the Whitechapel Company may make execute and do any deed act or thing proper for effectuating any such sale demise letting or disposition.

(3) Nothing in this section shall authorise the Whitechapel Company to sell the freehold interest in any shops chambers flats offices houses or buildings otherwise than together with the land whereon the same are respectively erected.

Application
of London
Building
Acts.

12. Nothing contained in this Act shall exempt any buildings or additions to buildings erected or any works executed by the Whitechapel Company under the powers of this Act within the administrative county of London or the Whitechapel Company in respect of any such buildings additions or works from the provisions of the London Building Act 1894 the London Building Act 1894 (Amendment) Act 1898 and any Act amending the same but the Whitechapel Company shall as regards any such buildings additions or works be entitled to the benefit of any special exemptions in favour of railway companies in the said London Building Acts contained but no such exemptions shall be deemed to apply to such part of any building as shall be used or intended to be used for other than railway purposes.

General line
of buildings.

13. Nothing contained in this Act shall authorise the Whitechapel Company in erecting any buildings or addition to buildings under the powers of this Act to encroach upon any part of the surface of any street or footway in the administrative county of London or without the consent of the London County Council to erect any building or structure beyond the general line of buildings in any street part of a street place or row of houses in the said county.

[5 EDW. 7.] *Whitechapel and Bow Railway Act, 1905.* [Ch. cxli.]

14. Proceedings for the recovery of any demand made under the authority of this Act or the recited Acts or any incorporated enactment whether provision is or is not made for the recovery in any specified court or manner may be taken in any county court provided that the demand does not exceed the amount recoverable in that court in a personal action.

A.D. 1905.

Recovery of demands.

15. The Whitechapel Company shall not out of any money by this Act authorised to be raised pay or deposit any sum which by any standing order of either House of Parliament now or hereafter in force may be required to be deposited in respect of any application to Parliament for the purpose of obtaining an Act authorising the Whitechapel Company to construct any other railway or to execute any other work or undertaking.

Deposits for future Bills not to be paid out of capital.

16. Nothing in this Act contained shall exempt the Whitechapel Company or the railway of that company from the provisions of any general Act relating to railways or the better and more impartial audit of the accounts of railway companies now in force or which may hereafter pass during this or any future session of Parliament or from any future revision or alteration under the authority of Parliament of the maximum rates of fares and charges or of the rates for small parcels.

Provision as to general Railway Acts.

17. All costs charges and expenses of and incident to the preparing for obtaining and passing of this Act or otherwise in relation thereto shall be paid by the Whitechapel Company.

Costs of Act.

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